

23STCV14105 23STCV14105

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 23STCV14105 Hearing Date: July 30, 2026 Dept: 731

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR AWARD OF ATTORNEYS' FEES

Background Facts

Plaintiff CalPortland brought this action pursuant to a June 20, 2023, Complaint alleging various breach of contract and common count claims related to work performed by CalPortland on behalf of Defendants J&F Builders, Inc., as guaranteed in writing by Defendant Francisco Ramirez and Does 11 through 20.

The action resolved by way of affirmative summary judgment in favor of Plaintiff, with judgment entered on January 30, 2026.

Now before the Court is Plaintiff's opposed motion for attorneys' fees and costs, as based on a contract between the parties. The Court also sua sponte addresses the May 14, 2026, memorandum of costs filed and served by Plaintiff.

Motion for

Attorneys' Fees and Costs

a.

Legal Standard

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4),

(b).) Attorneys' fees are also recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Fees and costs are recoverable where a party rejects an offer made pursuant to Code of Civil Procedure section 998 offer and later fails to obtain a more favorable judgment or award.

The Court begins this inquiry "with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM Group).) From there, the "lodestar figure may then be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

b. Discussion

Plaintiff brings this motion seeking \$39,390.50 in attorney's fees in connection with this action, as based on a contract between the parties, which is not attached to the moving papers, but which Defendant does not dispute in its opposition, limiting arguments to the reasonability of the award sought.

i.

Reasonable Rates

As to fee rates, Plaintiff seeks hourly rates ranging from \$380.00 to \$430.00 for counsel, and \$175.00 to \$210.00 for counsel's paralegal. (See Motion, Lipschultz Decl., ¶¶ 7, 8, Exs. A, B.)

In opposition, Defendant argues that the rates are not properly supported by evidence addressing the prevailing rate for related work in the community. (Opposition, p. 5.)

The reply does not appreciably

respond to the opposition.

After review, the Court finds that both counsel's and counsel's paralegal's rates are reasonable. Critically, the Court is considered "an expert in the matter of attorney fees" insofar "[t]he value of attorney's services is a matter with which a judge must necessarily be familiar." (*Excelsior Union High Sch. Dist. of L.A. Cnty. v. Lautrup* (1969) 269 Cal.App.2d 434, 448.) Accordingly, "[w]hen the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value." (*Ibid.*)

Here, the Court's own experience furnishes it with the background to confirm that the rates sought by Plaintiff for counsel and staff are eminently reasonable. Ms. Lipschultz is a 40-year practitioner (*Motion, Lipschultz Decl.*, ¶ 10) whose skills were demonstrated by the record before the Court, including the successful affirmative motion for summary judgment leading to judgment here. As for staff, billings of \$210.00 per hour for similar work in the community are not uncommon, supporting the requested rate.

ii.

Reasonable Hours

The number of hours spent on this action by counsel are not elaborated in the moving papers, not readily stated in or calculable from the attachments to the moving papers, and not clarified in the reply.

In opposition, Defendant argues that at least 13.8 hours of attorney time should be reduced from the total based on (1) 3.4 hours arising from bankruptcy proceedings related to a different defendant (Defendant Ramirez), against whom Plaintiff's motion seeks no fees (see *Motion*, 2:5-7), and (2) 10.4 hours arising from invoices connected to a different if related action concerning the same construction project. Defendant also argues that Plaintiff's remaining entries are rendered vague by block billing, meriting a 20% reduction in fees.

The reply does not appreciably respond to Defendant's opposition arguments.

The Court agrees that the 17.2

hours of attorney time highlighted by Defendant are not recoverable by Plaintiff, but the Court declines to further reduce the hours expended on this action, which are shown to be reasonable by a juxtaposition of the tasks described in Plaintiff's time entries and the corresponding time expended thereon, such as the number of hours reasonably expended on the summary judgment motion that led to judgment in this action.

Fees are thus reasonable in the amount of \$32,337.30, calculated by subtracting the \$7,053.20 in fees suggested by Defendant (Opposition, 4:10-15) from the total fees request of \$39,390.50.

iii.

Multiplier

No multiplier is requested by the moving papers despite the papers' discussion of the four multiplier factors, for which reason the Court does not further discuss this topic.

c. Conclusion

Plaintiff's motion is GRANTED in the amount of \$32,337.30.

Memorandum of Costs

a.

Legal Standard

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700(a)(1).)

b. Discussion

Though not directly before the Court, the Court addresses the May 14, 2026, memorandum of costs filed by

Plaintiff.

After review, the Court determines
that costs were untimely petitioned.

Judgment was entered on January 30,
2026, notice of judgment was served and filed by Plaintiff on February 26,
2026, and Plaintiff's memorandum of costs was filed on May 14, 2026. Thus,
because the notice of entry of judgment was served on February 26, 2026, the
memorandum of costs was due 15 days from February 26, 2026, well before
Plaintiff filed the memorandum of costs on May 14, 2026.

c. Conclusion

Plaintiff's request for costs
pursuant to its May 14, 2026, memorandum of costs is thus DENIED.

Plaintiff is ordered to give
notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.